

Before the Federal Maritime Commission, Washington,

DC. Docket No. 25-08

FormuKleen, Inc.
(Complainant)

Top Shipping Systems, Corp.
(Respondent)

**REPLY TO THE OPPOSITION TO THE MOTION TO
DISMISS**

COMES NOW Respondent, Top Shipping Systems, Inc. ("TSS"), by and through its undersigned counsel, and files this its Reply, to the Opposition to the Motion to Dismiss which is as follows:

1. The case should be dismissed as there is no subject matter jurisdiction.
2. There is nothing in the Opposition to show otherwise.
3. The Court clearly stated that there was no evidence suggesting that the Respondent was an NVOCC in its order denying the Summary Judgment Motion. There were no bills of lading that were issued by the Respondent and there is absolutely no evidence to suggest that the Respondent coordinated the move from the point of origin. The Respondent has submitted no proof to show that TSS was in charge of moving the cargo from China. Why would TSS, a Florida based company, be sending shipments from China to the United States, particularly when the only bills of lading on the record are from NVOCCs based in China. It makes no sense that a Miami based corporation would be the NVOCC on goods originating from China, particularly when there are bills of lading in the name of NVOCCs that are

located in China. It should further be noted that the Respondent is not the shipper on any of these bills of lading. A fact intensive examination reveals no bills of lading and no documents proving that the Respondent booked the cargo or did anything else to coordinate the shipment from China to Miami-Dade County, Florida. The Complainant said in an answer to an Interrogatory that at least some of the freight charges were paid by the exporter who is in China. See **Exhibit 1** at questions 16 and 18. There are no documents in which Formukleen is confirming an understanding that TSS was acting as an NVOCC on the 2 shipments that are the subject of this proceeding.

4. There are no booking notes that have been produced by Formukleen that involve TSS doing the booking for these shipments.
5. It should be pointed out that TSS has language in its warehouse receipt Exhibit D to the Motion to Dismiss at paragraph 8 and its customs agreement Exhibit E at paragraph 14 stating that it has the right to assert liens against cargo for prior shipments. These are documents attached to the Affidavit of Ricky Villena. These were local shipments. They have nothing to do with Federal Maritime Commission regulations. As repeatedly asserted, TSS was only involved with warehousing, drayage and customs. The Complaint is really a contractual issue. The Complainant is claiming that TSS canceled credit terms and asserted a lien on the cargo. This is a breach of contract action. In *Elite Logistics Corp. v. Tanera Transport LLC* 25-27, decided by your honor, held that there was no jurisdiction for a trucker to be in front of the Federal Maritime Commission trying to claim freight from an NVOCC. The involvement of TSS began at the time of clearing the goods through customs after it got an arrival notice and then provided trucking for delivery locally.
6. FormuKleen's allegations constitute nothing more than a contractual dispute after the goods

came into the United States.

7. In terms of what the court found earlier, it stated in denying the Summary Judgment the following,

“Without more information, I cannot conclude that Respondent acted as an OFF with respect to the two shipments. (*Petra Pet, Inc. v. Panda Logistics, Ltd.*, Dkt. 11-14, 2013 WL 9808694, at *3 (FMC Oct. 31, 2013) (affirming the ALJ’s finding that a respondent was not an OFF because the shipment at issue the shipments at issue were dispatched to the United States)).” There is nothing to show that the Respondent was acting as an ocean freight forwarder, especially since the cargo originated from China. As previously pointed out, the Court previously found that there was information lacking to show that TSS was acting as an NVOCC.

8. The Affidavit of Ricky Villena states the following:

The bill of lading for container number CHSU4047424 was issued by Topsealand International Co., Limited, a licensed NVOCC (FMC# 024647), which appointed Dolphin Logistics Inc. as its handling agent in the United States. (See Exhibit B)

The bill of lading for container number BSIU8431017 was issued by Qichen Logistics, a licensed NVOCC (FMC# 029070), which appointed DHY Shipping Line Inc. as its U.S. handling agent. (See Exhibit C).

The Respondent was not even the handling agent for the NVOCCs who issued the bills of lading. There was a separate company for each shipment that handled the arrival of the cargo.

9. There is nothing on the record to prove that TSS hired the NVOCCs.

10. If you take the argument that is being advanced as making TSS, a customs broker, and therefor an NVOCC, then everyone who aids in the release of imported cargo is a NVOCC. Furthermore, facilitating the movement to destination locally makes this theory even more confounding as TSS' activities were all locally driven.
11. The Respondent redirects the Court to *A Customs Brokerage, Inc. v. Cargocare Logistics USA, Inc. and Cargocare Logistics America, Inc.*, FMC Docket No. 1987(I) (served Apr. 4, 2024), which is misinterpreted by FormuKleen, as it states that ocean freight forwarders do not coordinate inbound cargo. Also, it serves as an example of a situation where a customs broker could not claim jurisdiction through the Federal Maritime Commission, therefor why should someone be able to claim for purposes of jurisdiction that a customs broker, TSS, is subject to the jurisdiction of the Federal Maritime Commission. As previously stated, customs brokers are regulated by United States Customs and Border Protection. TSS has separate OTI and Customs Broker licenses and here it does not automatically perform such duties concurrently. The Court also stated that "Similarly, CC America cannot have violated the Shipping Act in this case because it acted as a delivery agent, not as an NVOCC, MTO, or even an ocean freight forwarder." All TSS did was deliver the cargo after it cleared customs.
12. The list of responsibilities in the 46 CFR 522.2 (k) which are not singularly determinative in the event that a party handles one or even two services. There is nothing to show that the Respondent was handling all of these services. Furthermore, the Court should look to the overall functionality of the party who allegedly acted as an NVOCC. TSS only performed customs duties as a customs broker. It advanced freight charges as a courtesy but did not negotiate them as TSS was not even on the bill of lading.

13. The withholding of the cargo was the result of a domestic dispute after the cargo was effectively delivered as it went through customs. The cargo was no longer in international transit.
14. Any funds advanced for freight were done to get the cargo released from the port to prevent demurrage charges. The Respondent would again direct the Court to the case of *AEI Asia Express (H.K.) Ltd. v. Am. Bankers Ins. Co. of Fla.*, 5 F. App'x 106, 109 (4th Cir. 2001) which states: "NVOCC is defined as "a common carrier that does not operate the vessels by which the ocean transportation is provided and is a *shipper in its relationship with an ocean common carrier.*" 46 App.U.S.C.A. § 1702(17) (emphasis added). Courts frequently describe NVOCCs as "intermediary [ies] between a shipper of goods and an operator of a vessel that carries the goods. *Axess Int'l, Ltd. v. Intercargo Ins. Co.*, 183 F.3d 935, 937 (9th Cir.1999). " Additionally, in *AEI Asia Express (H.K.) Ltd. v. Am. Bankers Ins. Co. of Fla.*, the court conducted a detailed analysis of Worldwide's functions: "(1) to collect the ocean freight from the ultimate consignee, (2) to pay the carrier, (3) to deduct its commission, and (4) to remit the remainder" to the actual NVOCC did not make the party an NVOCC. Advancing funds does not in and of itself turn a party into an NVOCC.
15. Performing warehousing, local delivery, and customs clearance would better describe a customs broker than an NVOCC. TSS was working stateside on these shipments not internationally.

Wherefor the Respondent asks that the case be dismissed with prejudice for lack of subject matter jurisdiction.

CERTIFICATE OF SERVICE

I certify that on the 23rd day of March 2025, a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Served to:

Sara Dandan
FourOneOne LLC
2501 Chatham Rd, Suite 8082
Springfield, IL 62704
Email: sara@fouroneone.io
Secretary of FMC <secretary@FMC.gov>
Judges judges@fmc.gov

Respectfully submitted,

Daniel W. Raab. P.A.

s/Daniel W. Raab
Daniel W. Raab, Esq.
9555 North Kendall Drive Suite 210
Miami, Florida 33176
Bar Number 264199
Telephone: 305-598-5517
Facsimile: 305-598-5593

Email: raabdaniel57@gmail.com

Attorneys Respondent, Top Shipping Systems, Inc.

Before the Federal Maritime Commission, Washington, DC

Docket No. 25-08

FormuKleen, Inc.

(Complainant)

vs.

Top Shipping Systems, Corp.

(Respondent)

COMPLAINANT'S SUPPLEMENTAL ANSWERS TO RESPONDENT'S
INTERROGATORIES AND SUPPLEMENTAL RESPONSES TO REQUESTS FOR
PRODUCTION

Pursuant to 46 C.F.R. § 502.145 and in the interest of good-faith cooperation, Complainant FormuKleen, Inc. supplements its answers to the following interrogatories and responses to requests for production as requested by the Respondent on March 15, 2026. All prior objections and general objections are preserved and incorporated by reference. These supplemental answers and responses do not waive any objection previously asserted.

Interrogatory No. 2

"Please give the names, addresses, and phone numbers of all persons with knowledge concerning the subject matter of this proceeding."

Supplemental Answer:

Complainant supplements its prior answer to identify the principals of FormuKleen, Inc. as Valerie Thodde and Jessie Thodde. All other portions of Complainant's original answer remain unchanged, including the identification of Respondent personnel Ricky Villena, Rachel Villena,

Eddy Del Monte, Isaac Sarmiento, Glendy Pena, Veronica Martino, Yohana De Freitas, and Yesireth De Freitas, as well as the truck driver witness. Complainant's objections to third-party PII and contact information are preserved.

Interrogatory No. 5

"Please give an itemization of all damages that you are claiming in this proceeding and how they were calculated by you and for what purpose."

Supplemental Answer:

Complainant supplements to clarify that damages will be proven and finalized in Complainant's Opening Brief, Proposed Findings of Fact, and Appendix due April 13, 2026, and will be supplemented pursuant to 46 C.F.R. § 502.145. To date, Complainant's damages include (at minimum): (a) storage and warehouse charges during unlawful detention, (b) port, terminal, customs-related (including CBP assessments/penalty or liquidated-damages claims, holds/exam/CES fees), and inland drayage charges caused or extended by Respondent, (c) internal operational costs due to delay, (d) amounts paid under protest as a condition of release, (e) loss of business revenue, (f) interest and reparations, and other out-of-pocket charges incurred as a result of Respondent's conduct. Complainant cannot provide a complete itemization of all components while Respondent continues to withhold paid/advanced charge records, third-party invoices, and third-party communications that are necessary to verify and quantify the disputed charges. Complainant will provide numerical amounts supported by produced records in the April 13 appendix and will supplement as Respondent produces the withheld documentation.

Interrogatory No. 13

"Who hired DHY Shipping Line Inc. with regard to the shipment involving container BSIU8431017?"

Supplemental Answer:

Complainant's prior objections are preserved. Complainant answered this. FormuKleen did not directly hire or directly retain DHY Shipping Line Inc.

Interrogatory No. 14

"What function did Topsealand International Co., Limited perform with regard to container CHSU4047424."

Supplemental Answer:

Complainant's prior objections are preserved. FormuKleen did not directly contract with or directly retain Topsealand International Co., Limited. FormuKleen does not have direct knowledge of the specific functions Topsealand performed. Those records are in Respondent's control and Respondent has refused to produce them.

Interrogatory No. 15

"What function did Quichen Logistics play with the shipment in container BSIU8431017?"

Supplemental Answer:

Complainant's prior objections are preserved. FormuKleen did not directly retain Quichen Logistics. FormuKleen does not have direct knowledge of the specific functions Quichen

performed. Those records are in Respondent's control and Respondent has refused to produce them.

Interrogatory No. 16

"Who did you pay the freight charges to for shipment/container number CHSU4047424?"

Supplemental Answer:

Complainant supplements to clarify that charges associated with the subject shipments were paid both (a) to the exporter/origin-side party for the ocean freight/container movement, and (b) to Respondent TSS for additional freight-related charges and services by TSS. To the extent Respondent seeks an itemized breakdown of amounts Respondent characterizes as 'freight charges,' Respondent's own billing and payment records, and the third-party invoices Respondent refuses to produce, are the best source for any full accounting.

Interrogatory No. 17

"Who was your supplier for all of these shipments?"

Supplemental Answer:

Respondent already possesses documents identifying the supplier, including bills of lading, commercial invoices, packing lists, and email communications from the supplier, which Respondent has produced. Respondent was also in contact with the supplier. Complainant therefore maintains that Respondent's claimed lack of this information is unfounded.

Interrogatory No. 18

"Who did you pay for the freight charges for shipment /container BSIU8431017?"

Supplemental Answer:

Complainant supplements to clarify that charges associated with the subject shipments were paid both (a) to the exporter/origin-side party for the ocean freight/container movement, and (b) to Respondent TSS for additional freight-related charges and services by TSS. To the extent Respondent seeks an itemized breakdown of amounts Respondent characterizes as 'freight charges,' Respondent's own billing and payment records, and the third-party records Respondent refuses to produce, are the best source for any full accounting.

Request No. 16

"Any contracts for the purchase of items from the manufacturer for the shipments that are the subject of this proceeding."

Supplemental Response:

Complainant maintains its objections to Request No. 16. Subject to and without waiving those objections, Complainant supplements to state that no written contract exists with the supplier for the subject shipments; orders are placed on an as-needed basis without a governing written purchase contract.

Request No. 19

"A copy of any contracts that you have had with TSS."

Supplemental Response:

Complainant reiterates its objections to Respondent's premise that a single standalone "contract" document must exist. Complainant's position remains that any operative agreement is reflected in the documentary record of the parties' dealings, including Respondent's own written terms/conditions and the parties' written communications and invoice/charge records. If Respondent contends a specific document is "the contract," Respondent must identify it. Otherwise, Complainant has no responsive documentation that will cure this as requested.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

FourOneOne LLC

2501 Chatham Rd, Suite 8082

Springfield, IL 62704

Email: sara@fouroneone.io

Phone: 630-286-9846

Signature: _____

Date: 03/16/2026

Verification

I, Valerie Thodde, declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct and that:

- (1) I am a principal of FormuKleen, Inc.;
- (2) I have reviewed Complainant FormuKleen, Inc.'s COMPLAINANT'S SUPPLEMENTAL ANSWERS TO RESPONDENT'S INTERROGATORIES AND SUPPLEMENTAL RESPONSES TO REQUESTS FOR PRODUCTION; and
- (3) based on my personal knowledge and information reasonably obtained after diligent inquiry, the answers are true and correct to the best of my knowledge, information, and belief.

Valerie Thodde

Principal, FormuKleen, Inc.

Signature:



Date: March 16, 2026

CERTIFICATE OF SERVICE

I certify that on March 16th, 2026, a true and current copy of the foregoing was filed via electronic mail with the following known parties of record for the Respondent:

Daniel W. Raab, Esq.
Attorney for Respondent
9555 North Kendall Drive Suite 210
Miami, Florida 33176
Telephone: 305-598-5517
Email: raabdaniel57@gmail.com

Sara Dandan

